

26PR00388 Matter of Panfiglio Family Trust

County: sonoma

Division: Probate

Hearing date: 2026-07-24

Motion: Petition for Transfer of Trust Property; for Double Damages Under Probate Code §859

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Tentative Ruling: The petition is DENIED in part and CONTINUED in part, as set forth below.

As for the request for damages pursuant to California Probate Code (Prob C) §859, the petition is DENIED. Prob C §859 applies when property belonging to a conservatee, a minor, an elder, a dependent adult, a trust, or the estate of a decedent, or where a person has taken, concealed, or disposed of the property by the use of undue influence in bad faith or through the commission of elder or dependent adult financial abuse, as defined in Section 15610.30 of the Welfare and Institutions Code. The petition does not contain sufficient allegations to show that the petitioner qualifies for relief pursuant to Prob C §859.

As for the balance of the issues raised by the petition, the hearing is CONTINUED to October 30, 2026 at 9:30 a.m. in Department 63. For every petition filed pursuant to Division 9 of the Probate Code, the petition must include a copy of the entire trust instrument(s) relevant to the action, including all amendments thereto, and all attachments, schedules, and exhibits. Local Rule 6.8.A. The petitioner is directed to file and serve, at least ten (10) court days in advance of the continued hearing, a verified supplement containing a complete copy of the trust (including all amendments) applicable to this petition.

Also, the petition, at paragraph 35, indicates that an accurate list of all the names and addresses of all persons entitled to notice is attached to the petition. The service list appears at the last page of the petition, and lists three people. On June 22, 2026, the petitioner filed a proof of service showing service to nine people, some of whom are listed as the settlors' grandchildren. The petitioner is directed to include in the aforementioned verified supplement and accurate and complete list of the people entitled to notice, as required by California Probate Code §17201.

As this is now a contested matter, the parties are ordered to meet and confer in compliance with local rule 6.2(F)(2) and file statements of issues in compliance with local rule 6.2(F)(3) at least seven (7) court days in advance of the continued hearing.